

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey Kirton	Team: Squad #06	CCRB Case #: 201604301	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/10/2016 12:00 AM, Wednesday, 05/11/2016 1:30 AM	Location of Incident: East 40th Street and 1st Avenue	18 Mo. SOL 11/11/2017	Precinct: 17		
Date/Time CV Reported Wed, 05/18/2016 1:26 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 05/18/2016 1:26 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Michael Gragnano	13320	949050	017 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POF Brittany Postiglione	19044	959088	017 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Michael Gragnano	Discourtesy: PO Michael Gragnano spoke discourteously to § 87(2)(b)	A . Unsubstantiated			

Case Summary

On May 18, 2016, § 87(2)(b) filed this complaint online with the CCRB, generating online complaint #1-1252102780 (BR01).

On May 11, 2016 at approximately 1:20 a.m., § 87(2)(b) was at East 40th Street and 1st Avenue in Manhattan was pulled over for tinted windows. The vehicle in which § 87(2)(b) was driving belonged to his brother. § 87(2)(b) produced his license, but when he could not produce the registration for the vehicle, he was placed under arrest. The officers radioed for a transport vehicle and two uniformed officers, identified as PO Michael Gragano and PO Brittany Postiglione of the 17th Precinct, arrived. § 87(2)(b) was placed in the transport vehicle and once inside, requested that his handcuffs be loosened because they were too tight. PO Gragano informed § 87(2)(b) that his handcuffs would be loosened at the stationhouse. Once at the stationhouse, § 87(2)(b) again requested that his handcuffs be loosened, in which PO Gragano responded, “Stop bitching and keep walking” (**Allegation A**). § 87(2)(b) was then escorted into the 17th Precinct stationhouse and his handcuffs were loosened by PO Gragano. § 87(2)(b) was issued a summons for less than 70% light transmittance for the driver’s side front door window tint (BR02).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined mediation § 87(2)(b)
- § 87(2)(b) has not filed a Notice of Claim regarding the incident with the NYC Comptroller’s office as of July 22, 2016 (BR03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed three previous CCRB complaints in the past two years.
 - § 87(2)(b)
-
- PO Gragano has been a member of the NYPD for six years. This is his first CCRB allegation.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

§ 87(2)(g)

Recommendations

Allegation A –Discourtesy: PO Michael Gragano spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) was transported and escorted into the 17th Precinct stationhouse by PO Gragano and PO Postiglione. Furthermore it is undisputed that § 87(2)(b) complained to PO Gragano and PO Postiglione about his handcuffs being too tight. § 87(2)(g)

§ 87(2)(b) (BR05; BR06) testified that before stepping into the transport vehicle, he complained to PO Gragano that his handcuffs were too tight and received no response from PO Gragano. Once in the transport vehicle, § 87(2)(b) again expressed his discomfort about the tightness of his handcuffs and was told to relax by PO Gragano. When they arrived to the 17th Precinct stationhouse and § 87(2)(b) exited the transport vehicle, he told PO Gragano and PO Postiglione that they should loosen the handcuff. It was at this time that PO Gragano allegedly responded “You know what? Just stop bitching and keep walking.” After they entered the stationhouse, PO Gragano removed § 87(2)(b)'s handcuffs and placed him in a cell.

PO Gragano (BR07) testified to the following: When he arrived to the scene with PO Postiglione, he observed Sgt. Singh and his partner, PO Seidler waiting outside their police vehicle with § 87(2)(b). PO Gragano and PO Postiglione exited their vehicle and Sgt. Singh told him that he needed someone to transport § 87(2)(b) to the 17th Precinct stationhouse. PO Gragano observed § 87(2)(b)'s heavy, “huffy” breathing. § 87(2)(b) was then placed in the transport vehicle. During transport, § 87(2)(b) complained that handcuffs were too tight and stated that “this is bullshit.” PO Gragano told § 87(2)(b) that he would not be able to take off his handcuffs until they reached the stationhouse. PO Gragano did not hear any more grievances from § 87(2)(b). When they arrived at the 17th Precinct stationhouse, PO Gragano loosened § 87(2)(b)'s handcuffs a little while filling out his pedigree information, then placed him in a cell and removed his handcuffs. PO Gragano denied telling § 87(2)(b) to “Just stop bitching and keep walking” while he escorted him into the stationhouse.

PO Postiglione (BR09) corroborated that during the transport to the stationhouse § 87(2)(b) was agitated and displayed hostile behavior. § 87(2)(b) yelled about the tightness of his handcuffs and stated, “This is bullshit.” However, after being told that the handcuffs would be loosened once at the stationhouse, § 87(2)(b) stopped yelling. PO Postiglione denied that PO Gragano told § 87(2)(b) “Just stop bitching and keep walking.”

§ 87(2)(g)

§ 87(2)(b), it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date